

I.

Request

1. The Office of the Secretary of State for Justice requested the National Data Protection Commission (CNPd) to express its opinion on the draft Order that amends the size of procedural pieces, documents, the set of procedural pieces and documents, and certificates within the scope of electronic processing of cases in judicial courts and administrative and tax courts.
2. The CNPD issues an opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, granted by paragraph c) of no. 1 of article 57, in conjunction with paragraph b) of no. 3 of article 58, and with no. 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 - General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, in paragraph 2 of article 4, and in paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II.

Analysis

3. The draft Order under review aims to amend the size of procedural pieces, documents, the set of procedural pieces and documents, and certificates within the scope of electronic processing of cases in judicial courts and administrative and tax courts, promoting the fourth amendment to Order no. 280/2013, of August 26, which regulates various aspects of the electronic processing of judicial cases, amended by Orders no. 170/2017, of May 25, 267/2018, of September 20, and 86/2023, of March 27; the fifth amendment to Order no. 380/2017, of December 19, which regulates the electronic processing of cases in circle administrative courts, tax courts, central administrative courts, and the Supreme Administrative Court, amended by Orders no. 267/2018, of September 20, 4/2020, of January 13, 100/2020, of April 22, and 86/2023, of March 27; the second amendment to Order no. 209/2017, of July 13, which regulates the regime of the request, issuance, availability, and consultation of the electronic certificate within the scope of cases in judicial courts, administrative and tax courts, and the competence of the Public Prosecutor's Office, amended by Order no. 267/2018, of September 20.
4. From the analysis of the draft Order, it is noted that the introduced amendments aim solely to increase the size of procedural pieces and documents, individually considered or collectively, to 20 MB, to be submitted within the scope of judicial and administrative and tax processes. It is

Av. D. Carlos I, 134, 1º
1200-651 Lisbon
T (+351) 213 928 400
F (+351) 213 976 832